

SS11/15 ? Solvency II: regulatory reporting and limitations

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Introduction

1.1

This Supervisory Statement is addressed to all UK Solvency II firms and the Society of Lloyd?s. It should be read alongside all relevant onshored EU legislation, and the Reporting Part of the Prudential Regulation Authority (PRA) Rulebook. It clarifies the PRA?s expectations of the Solvency II regime?s requirements in relation to supervisory reporting.

1.2

In particular, this statement:

- * lists the reporting requirements that are subject to an exemption; and
- * explains the steps a firm must take to apply for an exemption, and how the decision will be communicated to the firm.

1.3

[Deleted]

1.4

[Deleted]

1.5

Firms should also refer to:

- * Bank of England and PRA Statement of Policy ?Interpretation of EU Guidelines and Recommendations: Bank of England and PRA approach after the UK?s withdrawal from the EU?1;
- * Supervisory Statement (SS) 1/19 ?Non-binding materials: The PRA?s approach after the UK?s withdrawal from the EU?2; and
- * Supervisory Statement (SS) 2/19 ?PRA approach to interpreting reporting and disclosure requirements and regulatory transactions forms after EU withdrawal?.3

Footnotes

* 1\ December 2020: SoP ?
<<https://www.bankofengland.co.uk/paper/2019/interpretation-of-eu-guidelines-and-recommendations-boe-and-pra-approach-sop>>

* 2\ December 2020: SS1/19 ?
<<https://www.bankofengland.co.uk/prudential-regulation/publication/2019/non-binding-pra-materials-the-pras-approach-after-the-uks-withdrawal-from-the-eu-ss>>

* 3\ December 2020: SS1/19 ?
 <<https://www.bankofengland.co.uk/prudential-regulation/publication/2019/non-binding-pra-materials-the-pras-approach-after-the-uks-withdrawal-from-the-eu-ss>>

1.6

Any reference to any provision of direct EU legislation is a reference to it as it forms part of retained EU law.

2

Solvency II reporting

2.1

The submission of National Specific Templates is in addition to those set out in the Solvency II Regulations as it forms part of retained EU law, and as referred to in Chapter 2 in the Reporting Part of the PRA Rulebook.

2.2

A firm may disclose on a voluntary basis any information or explanation related to its solvency and financial condition which is not already required to be disclosed in accordance with Reporting 3.3?3.8, 4, 5.1, 5.3, 5.4 and 5.5.

3

Scope of quarterly reporting limitation

3.1

The PRA considers that some firms may be eligible to apply for a modification by consent to limit regular supervisory reporting where the predefined submission period is less than one year. The PRA considers that firms designated as Category 3 or 4 by the PRA under the potential impact framework, whether solo or part of a group, are eligible to apply for this exemption from quarterly reporting. The PRA will grant this limitation via a rule modification under s138A FSMA⁴. The PRA may consider limitations for Category 1 and 2 firms on an exceptional basis. These cases could include small firms that are part of groups, where the group is designated as category 1 or 2 by the PRA.

Footnotes

* 4\ While the term ?waiver? is used throughout this document, the exemption would be granted by a modification by consent.

3.2

The reporting requirements are set out in the Solvency II Regulations (as they form part of retained EU law), and in Reporting 2.1?2.14 in the Reporting Part of the PRA Rulebook. The PRA has determined that firms categorised by the PRA as Category 3 or 4, both solo and part of a group, are eligible for the limitation of quarterly reporting through a modification by consent, unless specifically instructed by its supervisory team. Other firms may also be eligible.

3.3

Firms that are granted the solo-level exemption will only have to submit the Quarterly Reporting Templates (QRT) identified in Table A.

3.4

As shown in the table, the exemption from quarterly reporting at the solo level does not apply to:

- * second quarter reporting of own funds and balance sheet templates; and
- * the basic information and content of submission templates.

The latter templates will help the PRA understand basic information about each submission and facilitate validation checks.

Table A: Aspects of QRT required of firms granted a QRT exemption

Quarter 2 | Quarter 4

---|---

Basic information ?

S.01.02.01 |

Content of the submission

? S.01.01.02

|

Balance sheet ?

S.02.01.02 |

Information on own

funds ? S.23.01.01 |

3.5

The PRA has determined that groups subject to group supervision by the PRA which meet this criteria set out in Article 254 of the Solvency II Directive (as at the end of the transition period)⁵ may be eligible for this exemption from quarterly reporting at the level of the group. Groups that are granted this exemption may not be required to submit any group level quarterly reporting templates.

Footnotes

* 5\ The UK's membership of the EU came to an end on Friday 31 January 2020. The UK entered into a transition period lasting until 11pm on Thursday 31 December 2020, which marked the end of the transition period, during which EU law continued to apply to the UK.

3.6

The PRA may, where necessary to meet its objectives, make ad hoc requests for quarterly reporting from firms holding a waiver. Firms granted a waiver from quarterly reporting should therefore maintain their ability to respond to such ad hoc requests.

3.6A

Should a waiver be revoked by the PRA, the PRA expects that firms will resume reporting within six months from the initial notification, unless there are specific circumstances where such a delay would not be appropriate.

3.6B

Should a waiver expire and not be renewed by the firm or the PRA, reporting should resume at the next scheduled reporting date.

Application for Solvency II quarterly reporting exemptions

3.7

Category 1 or 2 solo firms and groups that believe they are eligible for limitations to quarterly reporting should discuss this limitation with their supervisor prior to submitting a formal application. Similarly, groups subject to group supervision by the PRA that believe they are eligible for limitations to quarterly reporting at the level of the group should discuss this limitation with their group supervisor prior to submitting a formal application. An application should then be submitted by completing the relevant questionnaire published on the Bank of England website⁶. The timing of decisions on the two types of applications may differ.

Footnotes

* 6\ See <<https://www.bankofengland.co.uk/prudential-regulation/authorisations/waivers-and-modifications-of-rules>>

3.8

Once the PRA has assessed an application it will inform the firm of its decision. Where an application is approved, the firm will be sent a Direction letter that sets out the duration of the waiver. The PRA expects firms to have a contingency plan in place in case their application is rejected and maintain contingency plans in case the waiver should expire without being extended. The PRA expects all firms to notify their supervisory contact as soon as they believe there are any circumstances which may impact their suitability to hold a waiver.

4

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